



February 9, 2026

ENGROSSED SENATE JOINT RESOLUTION No. 1

DIGEST OF SJ 1 (Updated February 9, 2026 11:31 am - DI 140)

Citations Affected: Article 1, Section 17 of the Constitution of the State of Indiana.

Synopsis: Constitutional amendment concerning bail. Provides that an offense other than murder or treason is not bailable if: (1) the proof is evident or the presumption strong; and (2) the state proves by clear and convincing evidence that no release conditions will reasonably protect the safety of any other person or the community. This proposed amendment has been agreed to by one general assembly.

Effective: This proposed amendment must be agreed to by a second general assembly and ratified by a majority of the state's voters voting on the question to be effective.

**Koch, Bray, Freeman, Buck,
Young M**

(HOUSE SPONSOR — JETER)

December 9, 2025, read first time and referred to Committee on Corrections and Criminal Law.

January 13, 2026, reported favorably — Do Pass.

January 15, 2026, read second time, ordered engrossed. Engrossed.

January 22, 2026, read third time, passed. Yeas 43, nays 2.

HOUSE ACTION

January 28, 2026, read first time and referred to Committee on Judiciary.

February 9, 2026, reported — Do Pass.

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February 9, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED SENATE JOINT RESOLUTION No. 1

A JOINT RESOLUTION proposing an amendment to Article 1, Section 17 of the Constitution of the State of Indiana concerning constitutional law.

Be it resolved by the General Assembly of the State of Indiana:

1 SECTION 1. The following proposed amendment to the
2 Constitution of the State of Indiana, which was agreed to by the One
3 Hundred Twenty-Third General Assembly of the State of Indiana and
4 referred to this General Assembly for reconsideration and agreement,
5 is agreed to by this the One Hundred Twenty-Fourth General Assembly
6 of the State of Indiana.

7 SECTION 2. ARTICLE 1, SECTION 17 OF THE CONSTITUTION
8 OF THE STATE OF INDIANA IS AMENDED TO READ AS
9 FOLLOWS: Section 17. Offenses, other than murder or treason, shall
10 be bailable by sufficient sureties, **unless the accused poses a**
11 **substantial risk to any other person or the community.** Murder or
12 treason shall not be bailable when the proof is evident, or the

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1 presumption strong. **An offense other than murder or treason shall**
2 **not be bailable if:**
3 **(1) the proof is evident or the presumption strong; and**
4 **(2) the state proves by clear and convincing evidence that no**
5 **release conditions will reasonably protect the safety of any**
6 **other person or the community.**



COMMITTEE REPORT

Mr. President: The Senate Committee on Corrections and Criminal Law, to which was referred Senate Joint Resolution No. 1, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said resolution DO PASS.

(Reference is to SJ 1 as introduced.)

FREEMAN, Chairperson

Committee Vote: Yeas 7, Nays 0

COMMITTEE REPORT

Mr. Speaker: Your Committee on Judiciary, to which was referred Senate Joint Resolution 1, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said resolution do pass.

(Reference is to SJ 1 as printed January 14, 2026.)

JETER

Committee Vote: Yeas 8, Nays 1

